

1. Line 40 through 47:

40 Criminal Procedure; and

41 ~~[(b)]~~(ii) the prosecuting attorney filed an information more than 60 days after the day
42 on which the accused was released from jail~~[-]~~; or

43 ~~(b)~~ §→ (i) ←§ after being booked into jail on conduct that would constitute an
43a offense, a magistrate

44 issued a temporary pretrial status order that released the accused from jail ~~§→ [{ }]~~

44a ; and

44b (ii) the prosecuting attorney filed an information and an affidavit in support of a
44c warrant of arrest more than seven days after the day on which the accused was
44d released from jail. ~~←§~~

45 (4) The presumption described in Subsection (3)(a) may be overcome if:

46 (a) the accused fails to appear on a served summons;

47 (b) a summons is unable to be served after good faith efforts~~[-or]~~, including a good faith